

Calendar Lines 1-2

Case Name: *Rosendo Cortes Fernandez v. Pacific Weathershield, Inc. et al.*

Case No.: 23CV419499

Defendant Gregg Crawford Construction, Inc. d/b/a Pacific Weathershield (“Crawford”) demurs to the first amended complaint (“FAC”) filed by plaintiff Rosendo Cortes Fernandez (“Fernandez”). In addition, Crawford moves to strike all or part of the FAC. Notice is proper for both the demurrer and motion, but the court has not received any opposition from Fernandez. The court sustains the demurrer in part and overrules it in part. The court denies the motion to strike.

First, Crawford contends, in support of both its demurrer and its motion to strike, that Fernandez has failed sufficiently to allege successor liability, given that Fernandez was employed by Pacific Weathershield rather than Crawford. According to Crawford, when a corporation purchases the assets of another corporation—and in this case, Crawford is alleged to have “purchased Pacific Weathershield through his company Gregg Construction” (FAC, ¶ 13)—the general rule is that “the acquiring corporation does not assume the selling corporation’s debts and liabilities.” (Memorandum in Support of Demurrer, p. 3:24-27.) Crawford then goes on to cite extrinsic evidence that shows that Crawford entered into an “Asset Purchase Agreement” with Pacific Weathershield and that this agreement “expressly provides” that “Crawford will not be liable for any of Pacific Weathershield, Inc.’s liabilities.” (*Id.* at p. 4:1-11.) Because the FAC affirmatively alleges that Crawford succeeded to Pacific Weathershield’s liabilities (FAC, ¶ 13), the court must accept this allegation as true on a demurrer or motion to strike. (See, e.g., *Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) And because Crawford’s argument ultimately relies on *extrinsic evidence* in an effort to dispute this factual allegation in the complaint, the court must reject this basis for the demurrer and motion to strike. The court **OVERRULES** the demurrer to the FAC and **DENIES** the motion to strike Crawford as a defendant on the basis of successor liability.

Second, Crawford argues that the first cause of action fails to state a sufficient basis for liability, because it is based on an alleged violation of Labor Code section 6409.6, which has been repealed as of January 1, 2024. The court agrees with Crawford that a violation of Labor Code section 6409.6 can no longer be the basis for a valid cause of action and therefore **SUSTAINS** the demurrer to the first cause of action without leave to amend.

Third, Crawford argues that the ninth cause of action (for violation of Labor Code section 1102.5) fails to state sufficient facts, because Fernandez does not sufficiently allege how he acted as a whistleblower. Although the court agrees with Crawford that the factual allegations in this cause of action are somewhat generic, the court finds that the allegation that Fernandez “complain[ed] internally to people with authority over plaintiff and/or authority to investigate or correct the violation or noncompliance with a reasonable belief that the information disclosed potential violations of state statutes or regulations relating to, inter alia, violations of regulations pertaining to the FEHA and California’s anti-disability discrimination and anti-retaliation” is sufficient to survive a demurrer. The ninth cause of action incorporates by reference all of the preceding allegations in the FAC regarding alleged violations of FEHA. The court **OVERRULES** the demurrer to the ninth cause of action.

Fourth, Crawford argues in support of his motion to strike that the first cause of action is based on a repealed statute, Labor Code section 6409.6. Because the court has already

sustained the demurrer to the first cause of action without leave to amend on this same basis, the court DENIES the motion to strike the first cause of action as moot.

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Calendar Line 3

Case Name: *William C. Dresser v. Adil Kiek Hirananeek et al.*

Case No.: 23CV425854

I. BACKGROUND

This is an action by plaintiff and judgment creditor William Dresser (“Dresser”) seeking to void alleged property transfers by the judgment debtor, Roda Hirananeek, to her son, defendant Adil Hirananeek (hereinafter, “Hirananeek”), that occurred before her passing away on January 16, 2020.

Dresser filed the original and still-operative complaint on November 13, 2023. It states two causes of action against Hirananeek and Dinaz Bhote (a daughter of Roda Hirananeek). The first cause of action is brought under the California Uniform Voidable Transactions Act (Civ. Code, §§ 3439 et seq.), and the second cause of action is one for common law fraudulent transfer. There are no exhibits attached to the complaint.

On April 29, 2024, Dresser filed a proof of service of the summons and complaint on Hirananeek, showing substitute service on someone named Richard Blanco at 195 East San Fernando Street, San Jose, CA 95112. It includes a declaration from a registered process server.

Currently before the court is Hirananeek’s motion to quash the service of summons, filed on May 29, 2024. Dresser filed an opposition on June 11, 2024.

Both sides in this case are self-represented, which is sometimes referred to as appearing “in propria persona.” “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnette v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted]; see also *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure]; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”].) As it happens, Dresser is an attorney, while Hirananeek is not.

II. REQUEST FOR JUDICIAL NOTICE

Dresser has submitted a request for judicial notice in support of his opposition to the motion. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”